

an emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway, nor protect him from the consequences of an arbitrary exercise of the privileges granted in section 21055. (FAC ¶19.)

The Demurrer is overruled as to the Negligence cause of action.

Vehicle Code § 17001

Defendant takes the position that despite Plaintiff's attempts to plead around this immunity, the City is entitled to immunity under Vehicle Code section 17004.7, as demonstrated by the Richmond Police Policy 309 - Vehicle Pursuits. (RJN Ex. A.) Defendant argues that While Plaintiff alleges that the City failed to adopt or implement a policy to assert this immunity, the Richmond Police Policy 309 - Vehicle Pursuits clearly demonstrates otherwise. The Court disagrees.

Taking judicial notice that a police policy exists does not conclusively prove that Defendant is immune from liability for civil damages under Vehicle Code § 17004.7(b)(1). Specifically, the code calls for the adoption and promulgation of a written policy for vehicular pursuits. Analyzing whether the written policy was properly adopted and promulgated is an issue of fact that is not proper to assess at the pleading stage.

"Vehicle Code §17001 creates a statutory exception to public entities' general tort immunity: 'A public entity is liable for death or injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting Veh. Code, §17001.) Regarding injuries caused by fleeing suspects during police pursuits, "'Section 17004.7 in turn limits the liability that ... [Vehicle Code] section 17001 otherwise permits by affording immunity to public agencies that adopt and implement appropriate vehicle pursuit policies.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting *Ramirez v. City of Gardena* (2017) 14 Cal.App.5th 811, 818.)

Plaintiff's FAC alleges that the City failed to adopt and promulgate a written vehicle pursuit policy that complied with all twelve minimum standards mandated by Vehicle Code §17004.7, subdivision (c). (FAC, ¶ 25(a).) The FAC further alleges that the City failed to provide the required regular and periodic annual training regarding its vehicle pursuit policy to its peace officers, including Officer C. Fuller. (FAC, ¶ 25(b).) Moreover, the FAC asserts that any annual training provided by the City was inadequate and failed to meet the minimum standards required by law, including the training guidelines established by the Commission on Peace Officer Standards and Training (POST). (FAC, ¶ 25(c).) Finally, the FAC alleges that the City failed to meaningfully implement and enforce its policy, including failing to ensure systemic compliance with the requirement that all peace officers certify in writing that they have received, read, and understood the policy, as mandated by Vehicle Code §17004.7, subdivision (b)(2). (FAC, ¶ 25(d).) Such allegations create factual disputes that must be accepted as true at the stage and are not overcome by City's production of a written policy. (See *Ketchum v. State* (1998) 62 Cal.App.4th 957, 961; *Flores v. City of San Diego* (2022) 83 Cal.App.5th 360, 367; *Ramirez v. City of Gardena* (2018) 5 Cal.5th 995, 1002.)

The Demurrer is overruled as to the Vehicle Code § 17001 cause of action.

Conclusion

For the reasons explained above, **the Demurrer is overruled.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

13. 9:00 AM CASE NUMBER: C24-03374

CASE NAME: MARVIN GONZALEZ VS. JESUS MATA

*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT

FILED BY: GONZALEZ, MARVIN TEMAL

TENTATIVE RULING:

Plaintiff's motion, which is not opposed, is granted. Plaintiff is granted leave to file the proposed First Amended complaint (which is attached to the Haulk Declaration as Exhibit 3), **within ten days of notice of entry of this order.**

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

14. 9:00 AM CASE NUMBER: C25-01327

CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT

FILED BY: NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

TENTATIVE RULING:

Parties shall appear. The motion to set aside default, filed by NOCD Florida Behavioral Health, P.A. and NOCD, Inc. (collectively "corporate defendants") is **conditionally granted**. Corporate defendants shall electronically submit for filing a declaration of counsel with an attached proposed pleading on or before the hearing on January 29, 2026.

Background and Analysis

Plaintiff Maria Rheba Estante worked for defendant NOCD Florida Behavioral Health, P.A. from approximately March 2022 through May 2023 as a Licensed Marriage and Family Therapist. Plaintiff was initially engaged as a contractor, but later converted to an employee who worked remotely. Following her termination, plaintiff threatened to sue defendants, retaining counsel. That counsel later sent a "disengagement letter," indicating they would no longer represent plaintiff. (Declaration of Michelle Joyce, ¶8.) Following the disengagement, plaintiff filed this action through new counsel in May of 2025.

In this action, plaintiff alleges six causes of action: including (1) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (2) Wage and Hour Violations Under Labor Code § 203 (Failure To Pay All Wages Due); (3) Wrongful Termination of Employment in Violation of Public Policy; (4) Intentional Infliction of Emotional Distress; (5) Violation of Business and Professions Code § 17200, et seq.; and (6) Violations of Business and Professions Code § 510.

The complaint was served on corporate defendants in June. Corporate defendants failed to timely respond and plaintiff took their defaults in August. The present motion to set aside the defaults was filed in October, not more than five months after service.

Code of Civil Procedure § 473 (b) states, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against